

2013 SCC OnLine All 12913

(BEFORE V.K. SHUKLA AND SUNEET KUMAR, JJ.)

Gaya Prasad Petitioner

v.

U.P. Power Corporation Ltd. Thru' Chairman & 3
Others Respondents

Counsel for Petitioner:- Smt. Usha Srivastava, Vinod Kumar
Srivastava

Counsel for Respondent:- C.S.C., Dr. Suman Kumar Yadav

Writ - C No. - 70396 of 2013

Decided on December 20, 2013

Hon'ble V.K. Shukla, J.

Hon'ble Suneet Kumar, J.

Gaya Prasad, is before this Court with the grievance that earlier he had electricity connection in his favour and thereafter said electricity has been got disconnected by him after depositing disconnection fee. Petitioner submits that thereafter he has never used electricity connection and petitioner submits that he has made complaint that bills were being raised in spite of same. This much is also reflected that spot inspection has been carried out and on the spot, meter in question has not been found but Gaya Prasad has been found to be residing therein and has been using electricity connection therein and in this background a sum of Rs. 1,40,848/- has been directed to be recovered from the petitioner as arrears of land revenue. after making assessment. At this juncture petitioner is before this Court.

Petitioner has submitted before this Court that he has never been informed as to what is relevant criteria of raising such bill and petitioner submits that fact of the matter is that for the entire period as mentioned he has not at all used any electricity.

Countering the said submission Dr. Suman Kumar Yadav, Advocate contended that spot inspection has been made and on the spot petitioner has been found to be using electricity, as such rightful order has been passed.

Under the U.P. Electricity Supply Code, 2005, in paragraph 7.10, Consumer Grievance Redressal Forum and Ombudsman has been provided for and as per the aforesaid provision at the first instance any

incumbent aggrieved by any action of the Licensee in respect of the matters mentioned in Clauses 7.71 to 7.75 or those covered under the said Regulations may file a complaint with the Licensee and thereafter if the Licensee fails to settle the issue raised in complaint by the consumer within the time specified in the Code or otherwise provided in the said Regulations, or the consumer is not satisfied by the decision of the licensee the consumer may file a complaint in the Consumer Grievance Redressal Forum as per the specified procedure under the said Regulation and thereafter on non-redressal of grievances he may make representation before the Ombudsman.

This Court cannot decide disputed questions of fact that in spite of disconnection of electricity connection petitioner has been using continuously and regularly electricity or not wherein the spot inspection so made does reflect that petitioner has been using electricity connection. In view of this, this Court refuses to interfere in the matter but certainly liberty is given to the petitioner to approach Executive Engineer Kanpur Electric Supply Company Limited, EDD Naubasta district Kanpur Nagar, respondent no. 3 by moving application and alongwith the application a draft of Rs. 25,000/- in favour of respondent no. 3 and on the same application being moved, the Executive Engineer Kanpur Electric Supply Company Limited, EDD Naubasta district Kanpur Nagar, shall look into the grievance of the petitioner on the basis of record available and in accordance with law preferably within two months from the date of presentation of certified copy of the order passed by this Court. Needless to say that reasoned decision be taken. In case a draft of Rs. 25,000/- alongwith representation is moved then till the matter is not decided by Executive Engineer Kanpur Electric Supply Company Limited, EDD Naubasta district Kanpur Nagar, respondent no. 3, amount in question as directed to be recovered, shall not be recovered and in case finding is returned that petitioner has been using electricity, then amount determined be recovered from him, as per law.

With the above direction present Writ petition is disposed of.

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